

SENATE No. 61

The Commonwealth of Massachusetts

PRESENTED BY:

Adam Gómez

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to urban farmland.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Adam Gómez</i>	<i>Hampden</i>	
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	<i>2/1/2025</i>
<i>Michael O. Moore</i>	<i>Second Worcester</i>	<i>3/12/2025</i>
<i>Mike Connolly</i>	<i>26th Middlesex</i>	<i>4/7/2025</i>
<i>James B. Eldridge</i>	<i>Middlesex and Worcester</i>	<i>6/11/2025</i>
<i>Patricia D. Jehlen</i>	<i>Second Middlesex</i>	<i>9/9/2025</i>
<i>Joan B. Lovely</i>	<i>Second Essex</i>	<i>10/7/2025</i>

SENATE No. 61

By Mr. Gomez, a petition (accompanied by bill, Senate, No. 61) of Adam Gomez and Joanne M. Comerford for legislation to establish the Vacant Lots to Urban Agriculture Fund to support the conversion of vacant lots to farms, community gardens, and other agricultural enterprises in environmental justice populations. Agriculture.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to urban farmland.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 Chapter 29 of the General Laws is hereby amended by adding the following section:-

2 Section 2EEEEEE. Vacant Lots to Farms Grant Fund

3 “Vacant lot”, A property which is not being actively used or occupied and which has not
4 been actively used or occupied within the preceding one year. This definition shall not apply to
5 property which is undergoing renovations or repairs due to fire or other casualty. For purposes of
6 this section, "vacant" also includes abandoned, empty, and/or foreclosed property(ies), and
7 underutilized spaces.

8 There shall be established and set up on the books of the commonwealth a separate fund
9 to be known as the Vacant Lots to Urban Agriculture Fund. The fund shall be administered by
10 the department of agricultural resources. The fund shall be credited with: (i) revenue from
11 appropriations or other money authorized by the general court and specifically designated to be

credited to the fund; (ii) interest earned on such revenues; and (iii) funds from public and private sources such as gifts, grants and donations. Amounts credited to the fund shall not be subject to further appropriation and any money remaining in the fund at the end of a fiscal year shall not revert to the General Fund; provided, however, that such contributions shall not be further restricted by the donor or used by the commonwealth for any other purpose.

The purpose of this fund shall be to support the conversion of vacant lots to farms, community gardens, and other agricultural enterprises in environmental justice populations, as defined in section 62 of chapter 30, in cities, as defined in Chapter section 128 of chapter 43, to support increased economic development, food security, and climate and heat resilience in urban areas. Priority shall be given to projects that support agricultural education, job training, donation of food to food insecure residents, and public engagement. The fund shall make awards as grants (i) to municipalities to collaboratively develop urban farming and gardening plans with residents, local food system businesses or organizations, and a regional planning agency (ii) to establish a pilot program in environmental justice communities, to transition vacant lots into farms, community gardens, and other agricultural enterprises (iii) move city-held tax land lien that was foreclosed prior to 2021 to agricultural use, (iv) to municipalities or urban agriculture organizations or businesses to assist in the purchasing of priority private parcels, and (v) to municipalities and an urban farming business or nonprofit organization to purchase or lease land, renovate the land, build infrastructure, and assist in farm, community garden, and other agricultural enterprise startup costs or (vi) to protect these parcels with a conservation easement.

The commissioner shall promulgate rules and regulations for the administration and implementation of subsections (a) and (b).

34 The commissioner shall file an annual report with the house and senate committees on
35 ways and means, the joint committee on agriculture, and the clerks of the house and the senate
36 on the following: (i) a list of grant applicants and the municipalities in which they are located,
37 (ii) a list of grant recipients and the municipalities in which they are located, (iii) the amount of
38 funds requested by applicants, (iv) the associated grant amounts, (v) the number of
39 environmental justice block groups served by the awards made by the fund.